

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0010277

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: A. NGUYEN

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL DBA MARINHEALTH
MEDICAL CENTER ET AL.

NATURE OF PROCEEDINGS: DEMURRER

RULING

The Demurrer of defendant David Lincoln Nelson, M.D. ("Dr. Nelson" or "Defendant") is SUSTAINED, in part, with leave to amend, and in part, without leave to amend.

LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Childs v. State of California* (1983) 144 Cal.App.3d 155, 159.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Plaintiff A. Nguyen (“Plaintiff”) filed a Complaint alleging eighteen causes of action against multiple defendants, including Marin General Hospital dba MarinHealth Medical Center (“MarinHealth”) and Dr. Nelson.

The Complaint states causes of action for:

1. Sexual Harassment/Hostile Work Environment in Violation of FEHA (Gov. Code § 12940(j));
2. Sex Discrimination in Violation of FEHA;
3. Retaliation in Violation of FEHA;
4. Failure to Prevent Harassment, Discrimination, and Retaliation in Violation of FEHA;
5. Disability Discrimination in Violation of FEHA;
6. Failure to Provide Reasonable Accommodation in Violation of FEHA;
7. Failure to Engage in the Interactive Process in Violation of FEHA;
8. Religious Discrimination in Violation of FEHA;
9. Failure to Accommodate Religious Practices in Violation of FEHA;
10. Retaliation for Requesting Religious Accommodation in Violation of FEHA;
11. CFRA Interference (Gov. Code § 12945.2);
12. CFRA Retaliation (Gov. Code § 12945.2);
13. Retaliation for Protected Sick Leave under the Healthy Workplaces Healthy Families Act;
14. Whistleblower Retaliation in Violation of Labor Code § 1102.5;
15. Wrongful Constructive Discharge in Violation of Public Policy;
16. Intentional Infliction of Emotional Distress;
17. Negligent Hiring, Retention, and Supervision; and
18. Assault and Battery.

Dr. Nelson demurs to fourteen of those causes of action – the Second through Fifteenth Causes of Action – on the grounds that each of these fourteen causes of action fails to state a claim against Dr. Nelson as a matter of law because he was not Plaintiff’s employer.

Allegations in the Complaint

The Complaint alleges that Plaintiff was employed “by MARIN GENERAL HOSPITAL, a California non-profit public benefit corporation, doing business as MARIN HEALTH MEDICAL CENTER.” (Compl., ¶¶ 1, 2, 7, 10.)

With respect to Dr. Nelson, the Complaint alleges he “is an individual who, at all times relevant herein, performed surgical procedures at MarinHealth Medical Center in Greenbrae, California. Defendant Nelson performed surgical cases in MarinHealth’s surgical suites, including in the Ambulatory Surgery Center, and had regular and continuing contact with MarinHealth’s nursing staff, including Plaintiff. MarinHealth’s own internal incident reporting system classified Defendant Nelson as a “Co-Worker” of Plaintiff at the time of the events alleged herein. MarinHealth assigned Plaintiff to work with Defendant Nelson and exercised control over Plaintiff’s working conditions during the surgical cases to which she was assigned with him, including control over room assignments, staffing, and scheduling.” (Compl., ¶ 3.)

“Plaintiff is informed and believes, and thereupon alleges, that Defendant Nelson performed surgical procedures at MarinHealth Medical Center pursuant to a relationship that gave rise to actual or ostensible agency liability on the part of MarinHealth, as the Hospital assigned Plaintiff to work alongside him, integrated him into MarinHealth’s surgical operations, and through such conduct created the appearance and reality of an employment or agency relationship for purposes of imposing liability for workplace harassment. To the extent Defendant Nelson is a physician with staff privileges rather than a direct employee of MarinHealth, such status does not relieve MarinHealth of liability for his harassing conduct, because MarinHealth knew of that conduct, substantiated the allegations, and failed to take adequate corrective action.” (Compl., ¶ 4.)

Paragraph 6 of the Complaint includes generalized agency allegations on information and belief.

Second Through Tenth Causes of Actions

Defendant argues that Plaintiff’s Second through Tenth Causes of Action allege violations of the California Fair Employment and Housing Act (“FEHA”). Defendant argues that each of these claims fails as a matter of law because FEHA does not permit individual liability against persons who are not employers for these causes of action.

For example, section 12940(a) declares it unlawful for “an employer” to discriminate because of sex. Section 12940(j)(4)(A) states” “For purposes of this subdivision only, ‘employer’ means any person regularly employing one or more persons or regularly receiving the services of one or more persons providing services pursuant to a contract, or any person acting as an agent of an employer, directly or indirectly, the state, or any political or civil subdivision of the state, and cities. The definition of ‘employer’ in subdivision (d) of Section 12926 applies to all provisions of this section other than this subdivision.” Section 12926(d) definition which provides: “ ‘Employer’ includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...”

The *Janken* court confronted the plaintiffs’ argument that an individual supervisor acts “as an agent of an employer” within the meaning of “employer” in section 12926, subdivision (d), and is therefore personally liable as an employer. (*Reno v. Baird* (1998) 18 Cal.4th 640, 647, citing *Janken v. GM Hughes Elecs.* (1996) 46 Cal.App.4th 55.) *Janken* found two possible constructions of the “agent” language. (*Ibid.*) “One construction is that argued for by plaintiffs here: that by this language the Legislature intended to define every supervisory employee in California as an ‘employer,’ and hence place each at risk of personal liability whenever he or she makes a personnel decision which could later be considered discriminatory. (*Ibid.*) The other construction is the one widely accepted around the country: that by the inclusion of the ‘agent’ language the Legislature intended only to ensure that *employers* will be held liable if their supervisory employees take actions later found discriminatory, and that *employers* cannot avoid liability by arguing that a supervisor failed to follow instructions or deviated from the employer’s policy.” (*Ibid.*) The *Janken* court adopted the latter construction for several reasons. (*Ibid.*)

The *Reno* court ultimately sided with *Janken*, holding “we conclude that individuals who do not themselves qualify as employers may not be sued under the FEHA for alleged discriminatory acts.” (*Id.*, at p. 663.)

In Opposition, Plaintiff counters that *Reno* was decided on summary judgment, after the facts had been established, and “Dr. Nelson is not alleged to be a supervisor who made personnel decisions about Plaintiff; he is alleged to have personally engaged in the underlying misconduct while integrated into MarinHealth’s operations.” (Oppo., p. 8:27-28; 9:1-3.) This argument appears to assert that the conduct giving rise to the Sexual Harassment Claim against Dr. Nelson (First Cause of Action) also supports all of the other FEHA claims against him. The Court notes that it is skeptical of this assertion. However, the Court will grant Plaintiff leave to amend in the hopes of clarifying the underlying misconduct Dr. Nelson is alleged to have personally engaged in.

With respect to the Second, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action, the Demurrer is SUSTAINED with leave to amend.

Plaintiff does not oppose Defendant’s Demurrer as to the Third and Tenth Causes of Action. (Oppo. p. 7:1-2.) The Demurrer is therefore SUSTAINED without leave to amend as to the Third and Tenth Causes of Action.

Eleventh, Twelfth, Thirteenth, and Fifteenth Causes of Action

With respect to these causes of action, the Opposition states “Even accepting that these provisions are directed principally at employers, the demurrer does not warrant dismissal of these claims against Dr. Nelson without leave to amend.” (Oppo. p. 8:18-19.) Because Plaintiff represents that these causes of action can be cured by amendment, and under the liberal policy of permitting amendment, the Court SUSTAINS the Demurrer to the Eleventh, Twelfth, Thirteenth, and Fifteenth Causes of Action with leave to amend.

Fourteenth Cause of Action

Dr. Nelson argues the Fourteenth Cause of Action fails because whistleblower retaliation under Labor Code section 1102.5 does not apply to non-employer individuals. California Labor Code section 1102.5(b) provides that an employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information the employee has reasonable cause to believe discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation. Plaintiff is correct that there is no explicit case law post amendment deciding whether or not individuals may be liable under this section. However, either way, the Complaint does not specify acts or conduct by Dr. Nelson. (See Compl., ¶ 128.) Accordingly, as to the Fourteenth Cause of Action, the Demurrer is SUSTAINED with leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNeEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>